

53	Macedonio v Garibay 22-01267043	Motion for Leave to File Cross Complaint by DEFT and Trial Setting Conference The Motion for Leave to file a Cross-Complaint brought by Defendant Juan Fernando Garibay is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendant shall separately file and serve the proposed Cross-Complaint, attached as Exhibit A to the Declaration of Nima Sadeghian, within 10-days. Defendant is granted leave to correct the caption of the proposed pleading before filing the cross-complaint. The names of the parties in the caption of the proposed pleading are not identified or mentioned in the allegations of the cross-complaint. The proposed cross-complaint asserts a claim for indemnity and contribution, relating to the motor vehicle accident which is the subject of the complaint. (§7 of Sadeghian Declaration and Exhibit A thereto, at ¶3-¶7.) "Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Courts "have repeatedly recognized that cross-complaints for comparative equitable indemnity are specifically allowed under section 428.10, subdivision (b) because of their transactional relationship to the complaint." (<i>Ibid.</i>) "An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff." (<i>Id.</i> at p. 39.) Thus, the proposed Cross-Complaint "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against Defendants." (Code Civ. Proc., § 428.10, subd. (b).) Additionally, given the close connection between the proposed claim and the claims within the Complaint, permitting the proposed Cross-Complaint will serve the interests of justice and judicial efficiency. (Code Civ. Proc., § 428.50, subd. (c).) The parties and/or their counsel shall appear for the trial setting status conference also scheduled on 4/18/25.
54	Davis v Mid Century Insurance Company 16-00877480	Motion to Compel Deposition by DEFT and OSC re Sanctions set by the Court. Defendants Mid-Century Insurance Company and Truck Insurance Exchange move to compel Plaintiff Jaimie Davis to appear for a further deposition. Defendant's motion is DENIED.

	On January 10, 2025, the Court found that discovery in this case had to be completed 30 days prior to the 10/28/24 trial date and stated, unequivocally, "Discovery is closed." (ROA 797 [01/10/25 Minute Order].) The Court cited to Code of Civil Procedure section 2024.020, subdivision (b) and <i>Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.</i> (2008) 165 Cal.App.4th 1568 in noting that "[a] continuance or postponement of the trial date does not operate to reopen discovery proceedings." (<i>Id.</i>) On January 24, 2025, Defendants filed a Ex Parte Application to Reopen Limited Discovery for the purposes of opposing Plaintiff's Pending Motion for Summary Adjudication. (ROA 808 [Ex Parte Application re Reopening Limited Discovery].) On January 27, 2025, the Court granted Defendants' Ex Parte Application to Reopen Limited Discovery. (ROA 813 [01/27/25 Minute Order].) The Court signed a formal Order. (See ROA 816 [Order to Reopen Discovery].) The Order granted Defendants' Ex Parte Application and further ordered that Defendants may depose Plaintiff and may propound Requests for Production on Issues Related to and Arising from Plaintiff's Motion for Summary Adjudication, including eight specified categories. (<i>Id.</i>) Defendants' counsel took Plaintiff's deposition on March 6, 2025. (Boon Decl. ¶ 4, Exh. 2.) Believing that Plaintiff did not respond to written discovery or deposition question in satisfaction of her discovery obligations, Defendants moved to compel Plaintiff to appear for further deposition on March 13, 2025. (ROA 846 [Motion to Compel Deposition].) The Court granted Defendants' concurrently-filed Ex Parte Application to advance the Motion to Compel and also continued the parties' Motions for Summary Judgment and/or Summary Adjudication. (ROA 854 [03/14/25 Minute Order].) In <i>Pelton-Shepherd Industries</i>, the plaintiff had served the defendant with a demand for production of documents, to which a written response was due after the discovery cutoff. (165 Cal.App.4th at pp. 1572–1573.) When the defendant did not respond by the deadline, the plaintiff filed a motion to compel the response, to be heard on a date after the last day a discovery motion could be heard. (<i>Id.</i> at pp. 1575, 1585.) The trial court granted the motion to compel. On appeal, the appellate court determined that, although the trial court had discretion under section 2024.020 to hear the motion to compel after the 15th day before the initial trial date, its discretion was limited by section 2024.050. Section 2024.050 provides that a party may move to have a discovery motion heard closer to the initial trial date, or to reopen discovery after a new trial date has been set, in accordance with the factors set forth in that section. (<i>Id.</i> at pp. 1586–1587.) The
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		trial court exceeded its discretion to hear the motion to compel because the plaintiff had not made a motion to reopen discovery and because there was nothing in the record to show that the trial court had decided that discovery should be reopened based on the relevant circumstances. (<i>Id.</i> at p. 1588.) Here, the Court granted Defendants’ March 13, 2025 Ex Parte Application to Advance Motion to Compel and Shorten Time. (ROA 854 [03/14/25 Minute Order].) However, the <i>Pelton-Shepherd</i> court found that Code of Civil Procedure section 2024.050 specifies that leave to reopen discovery may be granted “[o]n motion of any party.” (Code Civ. Proc., § 2024.050, subd. (a).) “Moreover, such a motion must be accompanied by a meet and confer declaration, and in exercising its discretion to grant or deny the motion the court must consider various factors, including (but not limited to) ‘[t]he necessity and the reasons for the discovery’ and ‘[t]he diligence or lack of diligence of the party seeking ... the hearing of a discovery motion, and the reasons that ... the discovery motion was not heard earlier.’ (Code Civ. Proc., § 2024.050, subds. (a) & (b)(1), (2).)” (<i>Pelton-Shepherd</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1586–1587.) Defendants’ March 13, 2025 Ex Parte Application does not satisfy the requirements of Code of Civil Procedure section 2024.050. The Ex Parte Application is not a noticed motion; Defendants did not engage in the required meet and confer; and the Application did not request that discovery be reopened or require the court to consider the necessary factors. The motion to compel deposition is denied because discovery is closed, and Defendants did not file a motion for leave to reopen discovery. Thus, the Court does not have discretion to consider the motion to compel deposition. Plaintiff’s request for sanctions is denied. The court did not consider Plaintiff’s Sur-Reply. It was not material to the disposition of the motion. Defendants to give notice. Defendants and their counsel shall appear at the OSC re Sanctions set for Friday, 4/18/25 at 10:00.
55	Rexford Industrial- Berry LLC v Alatus Aerosystems 23-01326669	Demurrer to Complaint x2 by DEFT Defendant Triumph Group, Inc. demurs to the Complaint, the first cause of action for declaratory relief (tenant) and the second cause of action for declaratory relief (guarantor) on the grounds that there is another action pending between the same parties on the same cause of action, Code of Civ. Proc. § 430.10(c); and failure to state sufficient facts under Code